City of Bellingham
Proclamation of Local Emergency

WHEREAS, on February 29, 2020, the Governor of the State of Washington proclaimed that a State of Emergency exists in all counites in the State of Washington due to the outbreak of COVID-19; and

WHEREAS, the Whatcom County Health Department, the lead local agency, and the Whatcom County Sheriff's Office Division of Emergency Management reported to the Whatcom County Executive and to the City of Bellingham, beginning January 21, 2020, that operations and planning for the expanding outbreak of COVID-19 have been occurring in Whatcom County; and

WHEREAS, on March 10, 2020, the Whatcom County Executive, in coordination with the Whatcom County Health Board, declared a Whatcom County public health emergency to reduce the spread of COVID-19 in our community; and

WHEREAS, in response to the rapidly evolving situation in Whatcom County, the Whatcom County Health Officer issued recommendations to slow the spread of COVID-19; and

WHEREAS, the City of Bellingham (City), under the leadership of the Mayor, has implemented measures within City operations, services, and facilities to follow the recommendations of the Whatcom County Health Department; and

WHEREAS, this incident is a threat to life and public health, which constitutes an emergency, and demands ongoing and further emergency action; and

WHEREAS, public health, safety, and welfare are at risk such that further effort is needed to continue and expand operations to reduce the threat; and

WHEREAS, all available resources are committed to this event; and

WHEREAS, the City may require supplemental assistance; and

WHEREAS, the severity of this event may go beyond the capability of local resources; and

WHEREAS, the provisions of RCW 38.52.070, B.M.C. 2.57.060, and other applicable law grant authority to the Mayor as contemplated in this proclamation; and

WHEREAS, the existing conditions warrant the proclamation of the existence of a local emergency.

NOW, THEREFORE, I, SETH FLEETWOOD, Mayor of the City of Bellingham, do hereby proclaim that a local emergency exists due to the COVID-19 pandemic, emergency operations are ongoing and in effect, and this necessitates the utilization of emergency powers granted under RCW 38.52.070, B.M.C. 2.57.060, and all applicable law.

Pursuant to this proclamation, each City of Bellingham department head or their designee is authorized to exercise the powers vested under this proclamation in light of the exigencies of an emergency situation without regard to time requirements and formalities prescribed by city policy or law (except mandatory constitutional requirements).

It is further ordered that all acts taken prior to the effective date and time of this proclamation that are consistent with the intent and purpose of the proclamation are hereby ratified and confirmed retroactive to the time of the onset of the outbreak.

This proclamation shall remain in full force and effect until terminated by issuance of a subsequent written order.

Dated this 12th day of MARCH, 2020.

Mayor Seth Fleetwood

Attest:

Finance Director

Approved as to form:

Office of the City Attorney